

		proceeded with arbitration on the merits and appear to never have made any objections regarding the Arbitrator until the present opposition. Respondents therefore have waived any objection to the Arbitrator. (Code Civ. Proc., § 1281.91, subd (c); <i>Alper v. Rotella</i> (2021) 63 Cal.App.5th 1142, 1152–53 [“If a party learns the arbitrator failed to disclose information relevant to disqualification, the party must object ‘at the earliest practicable opportunity after discovery of the facts constituting the ground for disqualification.’ [Citation.] ‘While failure to disclose properly a ground for disqualification generally mandates vacation of the award, this rule only applies if the party moving to vacate “had no reason to know of the existence of a nondisclosed matter.” [Citation.] If a party is “aware that a disclosure is incomplete or otherwise fails to meet the statutory disclosure requirements,” the party “cannot passively reserve the issue for consideration after the arbitration has concluded.””].)) Finally, Respondents have identified no conflict with the Arbitrator which would require the Petition to be denied, or the award be vacated. For the foregoing reasons, the Petition is GRANTED. Petitioners are ordered to file a proposed judgment and to give notice of this ruling.
5.	<i>Forward Financing LLC vs. Aladdin VIP Transportation Inc</i> 2025-01532815	Before the court is the continued hearing on the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. The court first heard this petition on March 26, 2026. At that time, the court continued the hearing because Petitioner failed to file a proof of service showing Respondents and been properly served with the petition and notice of the hearing. Specifically, the court ruled as follows: “Before the Court is the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik

	(collectively, Respondents). As more fully set forth below, the hearing is CONTINUED TO THURSDAY, MAY 28, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and notice. "Petitioner is required to serve the petition and notice of hearing at least 10 days prior to the hearing. (Code Civ. Proc., § 1290.2.) The manner in which service is to be made is governed by Code of Civil Procedure section 1290.4, which provides as follows: “(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. “(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: “(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. “(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service. “(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.’ "California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. "Here, no proof of service has been filed showing the petition and notice of hearing have been served on
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		Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” As of the May 28, 2026 hearing, Petitioner had not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Counsel for Petitioner, however, appeared at the May 28, 2026 hearing and requested another continuance. The Court granted the request for a continuance but issued a Minute Order stating, in part: “The court grants 1 final continuance. “The Petition to Confirm Arbitration Award is continued to 08/27/2026 at 02:00 PM in this department. “Petitioner is ordered to file a proof of service showing proper service on Respondents or declaration explaining the status and all efforts of service no later than 08/17/2026.” Petitioner has not filed any documents since the last hearing—not a new notice of hearing, not a proof of service, nothing. Based on the repeated failure to serve Respondents, as well as the failure to provide the court with any update regarding the efforts to locate and serve Respondents as the court ordered, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
6.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01558067</i>	Before the court is the amended motion of petitioner Mirwais Azizi (Petitioner) to consolidate arbitrations and compel a single joint arbitration proceeding. As set forth below, the motion is DENIED as Petitioner has failed to adequately demonstrate consolidation is appropriate or required in this case. Indeed, the showing and argument is far too conclusory and fails to even cite the court to the controlling arbitration provisions or other relevant contractual terms. By this motion, Petitioner seeks to consolidate arbitration with two separate insurance companies regarding his